Publication of notice of the proposed exchange will not be required and payment of fees will not be required in connection therewith.

If all be regular and the report of the Division of Investigations be satisfactory, the proposed exchange will be submitted to the Secretary of the Interior for his consideration. Upon the approval of the exchange by the Secretary of the Interior, the deeds of conveyance will be returned for recording and the abstract of title to be brought down to show such recordation.

Upon the receipt in this Office of the recorded deeds, a patent will be issued to the State for the tract desired in exchange, such patent to contain the mineral reservation and the forfeiture provision prescribed by the act of March 3, 1933, and as contained in the patent issued to the State for the land originally selected. A patent also will be issued to the party exchanging with the State, for the tract reconveyed by the State to the United States.

Very respectfully,

FRED W. JOHNSON,
Commissioner.

Approved August 20, 1937.

OSCAR L. CHAPMAN,
Assistant Secretary.

[F. R. Doc. 37-2991; Filed, October 9, 1937; 9:35 a. m.]

INSTRUCTIONS UNDER THE ACT OF CONGRESS PROVIDING FOR THE SELECTION OF LANDS IN THE STATE OF CALIFORNIA FOR THE USE OF THE CALIFORNIA STATE PARK SYSTEM

SEPTEMBER 22, 1937.

REGISTER, UNITED STATES LAND OFFICE,
Los Angeles, California.

SIR: The act of Congress approved June 29, 1936 (49 Stat. 2026), entitled "An Act To provide for the selection of certain lands in the State of California for the use of the California State park system," reads as follows:

That subject to valid rights existing on the date of this Act, the State of California may, within five years, select for State park purposes by legal subdivisions all or any portion of the public land not reserved for public purposes in the following townships:

Township 13 south, range 4 east, San Bernardino meridian, sections 25, 26, 35, and 36; township 13 south, range 5 east; township 13 south, range 6 east; township 13 south, range 7 east; township 13 south, range 8 east; township 13 south, range 9 east.

Township 14 south, range 4 east, sections 1 and 12; township 14 south, range 5 east, sections 1 to 26, inclusive, 35, and 36; township 14 south, range 6 east; township 14 south, range 7 east; township 14 south, range 8 east; township 14 south, range 9 east.

Township 15 south, range 6 east, sections 1 to 18, inclusive; township 15 south, range 6 east, sections 21 to 27, inclusive; township 15 south, range 6 east, sections 34, 35, and 36; township 15 south, range 7 east, township 15 south, range 8 east; township 15 south, range 9 east; township 15 south, range 10 east, sections 29, 30, 31, and 32.

Township 16 south, range 6 east, sections 1, 2, 3, 4, 9, 10, 11, 12, 13, 14, 15, and 16; township 16 south, range 7 east; township 16 south, range 8 east; township 16 south, range 9 east, sections 1 to 12, inclusive; township 16 south, range 10 east, sections 5, 6, 7, and 8.

Township 17 south, range 8 east, San Bernardino meridian: *Provided*, That the Secretary of the Interior may set aside lands of approximately forty-two thousand acres of the above-described area, and may in his discretion, and under such rules and regulations as he may prescribe, transfer complete title to all or any part of the same to the State of California on the basis of acre for acre in consideration of the transfer by the State of California to the United States of the complete title to lands owned by said State within the area withdrawn by Executive Order Numbered 6361 of October 25, 1933, and the provisions of section 2 of this Act shall not apply thereto.

SEC. 2. Upon the submission of satisfactory proof that the land selected contains characteristic desert growth and scenic or other natural features which it is desirable to preserve as a part of the California State park system, the Secretary of the Interior shall cause patents to issue therefor: *Provided*, That there shall be reserved to the United States all coal, oil, gas, or other mineral contained in such lands, together with the right to prospect for, mine, and remove the same at such times and under such conditions as the Secretary of the Interior may prescribe: *Provided further*, That any patent so issued shall contain a provision for reversion of title to the United States upon a finding by the Secretary of the Interior that for a period of more than one year the land has not been used by the State for park purposes: *And provided further*, That in order to consolidate park areas or to eliminate private holdings therefrom, lands patented hereunder may be exchanged with the approval of and under rules prescribed by the Secretary of the Interior for privately owned lands in the area hereinbefore described of approximately equal value containing the natural features sought to be preserved hereby. The lands so acquired to be subject to all the conditions and reservations prescribed by this Act, including the reversionary clause hereinbefore set out.

The public lands within the area described, not reserved for public purposes and not embraced in entries or claims based upon rights existing on the date of the act and thereafter legally maintained are, in view of the five-year period fixed, withheld from disposition under the public land laws other than that authorized until June 30, 1941. You will make appropriate notations as to this reservation upon the records of your office.

For the purpose of this act it is not considered that the public lands involved are affected by the withdrawal made by Executive Order No. 6910, of November 26, 1934, as amended.

Applications to select lands under this grant within the area described should be filed in your office by the proper State officer, in accordance with the regulations governing selections of lands by States, approved June 23, 1910 (39 L. D. 39), as applying to "special grants" or "grants in quantity," except that because of the mineral reservation made by the act no non-mineral affidavit will be required. No affidavit as to springs or water holes will be required in connection with such applications. There must be furnished, however, an affidavit showing that the land is unappropriated, that it is not occupied by and does not contain improvements placed thereon by any Indian, and that no part of the land is claimed, occupied, or being worked under the mining laws. Each selection list must be accompanied with proof that the land selected contains characteristic desert growth and scenic or other natural features which it is desired to preserve as a part of the California State park system. Payment of fees will be required in the sum of $2 for each 160 acres, or fraction thereof.

The selections in any one list should not contain more than 6,400 acres in accordance with the regulations above referred to, 39 L. D. 39, and in each selection list it should be stated that the selections are made under said act of June 29, 1936 (49 Stat. 2026). A certificate of the selecting agent of the State showing that the selections are made under and pursuant to the laws of the State must be furnished with each selection list.

Upon acceptance of the selections, you will prepare a notice for publication thereof.

Any patent issued to the State for such selections, excepting any which may be made under the proviso to section 1 of the act, will contain the mineral reservation and forfeiture provision prescribed by section 2 of the act. No provision is made at this time for development of the reserved mineral deposits in the lands to be so conveyed under this act, and until such regulations shall have been issued, the reserved mineral deposits will not be subject to disposition.

Under the provisions of the act, the State of California, with the approval of the Secretary of the Interior and under rules prescribed by the Secretary, may exchange lands which may be patented under this act with a reservation of minerals to the United States, for privately-owned lands within the area described of approximately equal value, containing the natural features sought to be preserved by the act. The lands to be acquired by the State through such exchange will be subject to the same conditions and reservations prescribed by said act, including the reversionary clause.

A proposal for an exchange desired to be made by the State in accordance with these provisions of the act must be submitted to the Secretary of the Interior for consideration. Such a proposal for exchange should be filed in your office together with an affidavit by the agent of the State showing